

Control No: 2025-0005
Contractor: The Schutz Company Inc.
Requirement: Element B

JUSTIFICATION REVIEW DOCUMENT
FAR SUBPART 13.5 SIMPLIFIED PROCEDURES FOR CERTAIN COMMERCIAL
ITEMS – SOLE SOURCE JUSTIFICATION AND APPROVAL

Program/Equipment: Element B Online Instruments

Authority: Simplified Procedures for Certain Commercial Items, 41 U.S.C. 1901as implemented by FAR Subpart 13.5.

Amount: \$ 740,000.00

Prepared by: Name: [REDACTED] Phone: [REDACTED]
Title: [REDACTED] Date: [REDACTED]
Email: [REDACTED]

Contracting Officer: Name: [REDACTED] Phone: [REDACTED]
Title: [REDACTED] Date: [REDACTED]
Email: [REDACTED]

Technical: Name: [REDACTED] Phone: [REDACTED]
Title: [REDACTED] Date: [REDACTED]
Email: [REDACTED]

Reviews: I have reviewed this justification and find it adequate to support sole source.

Program Manager: Army Management Staff College
Typed Name: [REDACTED]
Phone: [REDACTED]

Signature: [REDACTED]

Legal Review: [REDACTED]
Typed Name: [REDACTED]
Phone: [REDACTED]

Signature: [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

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FAR Subpart 13.5 Simplified Procedures for Certain Commercial Items – Sole Source Justification and Approval

1. Contracting Activity: MICC - Fort Leavenworth

2. Description of Action:

Army Management Staff College (AMSC) needs Element B online instruments with interpretive reports. The MICC would like to create a 4 year total order period with a \$740,000.00 maximum IDIQ contract to support the requiring activity. Requested annual quantities include: of Element B: Behavior online instruments and interpretive workbooks.

The Government projects award for 3/17 2025 fiscal year Operations and Maintenance funds will be used.

- ☒ An acquisition plan is not required because this procurement does not meet the threshold at Defense Federal Acquisition Regulation Supplement 207.103(d)(i)(B).
☐ approved an acquisition plan in accordance with DFARS 207.103(d) (i) (B) on .
☐ The required acquisition plan in accordance with DFARS 207.103(d)(i)(B) is currently awaiting approval.

3. Description of Supplies/Services:

Element B Online Instruments focuses on behavior in three interpersonal content areas which include; inclusion, control and openness. Inclusion looks at an individuals desired amount of contact with people. Control is concerned with achieving the desired amount of control over people. The last interpersonal content area is an individuals desired amount of openness. Element B acknowledges people change intentionally and unintentionally. The meaning of the results comes from individual interpretation instead of statistics. The results support the Army's mission by teaching civilians more about themselves to support developing alliances, partnerships, negotiations, and multi-team operations.

Period of Performance: 3/17/2025 to 3/16/2029 or (insert completion date)

Total Value: \$ 740,000.00

4. Authority Cited: Simplified Procedures for Certain Commercial Items, 41 U.S.C. 1901 (or 41 U.S.C. 1903 for Special Emergency Procurement) as implemented by FAR Subpart 13.5:

- ☐ Unusual and compelling urgency
☒ Exclusive licensing agreements
☐ Industrial mobilization
☐ Other:

5. Reason for Authority Cited:

(a) Background:

The Schutz Company Inc is, by contract with the copyright owners, the sole and exclusive publisher of the Element B: Behavior online instruments and interpretive workbooks. Authorized electronic versions of the instruments are only available through The Schutz Company Inc.'s online instrument platforms.
See Sole Source Letter sent from The Schutz Company Inc. in associated PCF file.
On multiple previous contracts (Reference Market Research in PCF) notice of intent to sole source has been posted to SAM.gov with no responses.

(b) Facts & Circumstance Establishing Unusual & Compelling:

N/A

(c) If brand name; explain what feature(s) of a product to one manufacturer:

Element B Online Instruments and Interpretive Reports is copyrighted licensing that cannot be replicated.

(d) Explain why specifications to allow for competition have not been developed :

An intent to sole source with alternative consideration was posted to SAM.gov on 18 October 2024. There have been no responses to date, including previous publications for past sole source procurements with The Schutz Company Inc. A Sole Source Letter from the Schutz Company was provided, claiming no authorized resellers for this product exist.

(e) If applicable, estimate where duplication of effort would not benefit the Government :

N/A

(f) Analysis of Alternatives:

After multiple intent to sole source publications to Federal Business Operations (FBO), now SAM.gov, there have been no responses to date. Due to no responses on any past or present post to SAM.gov, there are no alternatives at this time.

(g) Minimum Requirements of Government:

The government's minimum requirement for this fiscal year is:

Element B: Digital Full Interpretive - [REDACTED]

Element B: Digital Feedback Transparency - [REDACTED]

Projected annual order quantities until the end of the ordering period is consistent with the above.

(h) If Competition were feasible:

If competition were feasible a vendor would have provided a response to the SAM.gov intent to sole source publications. The vendor would be reviewed to legitimate claims the vendor can meet the requirements. Due to no responses from any of the previous intent to sole source publications posted to FBO or SAM.gov and The Schutz Company Inc releasing a sole source letter, alternatives are incapable of replicating the defined requirement.

(i) Mandated Change to Continue Services:

N/A

(j) Constraints Limiting Competition:

The limiting factor for competition is The Schutz Company Inc. holds copyrights over the Element B instruments. The Schutz Company Inc. copyrighted Element B and 62 other titles on 15 January 2003 to have sole legal rights over their online interpersonal instruments. The Sole Source Letter provided from The Schutz Company Inc. (Reference PCF) limits any competition from meeting the requirements.

(k) Bridge Contract – Realistic v Unrealistic Expectations for a new awardee:

N/A

(l) Action if Contract is Result of Protest:

The chance of this procurement being protested is highly unlikely because The Schutz Company Inc. owns the copyrighted materials. Furthermore, there have been no responses to multiple intent to sole source publications on FBO / SAM.gov.

(m) Harm to Government if Sole Source not approved:

IAW TRADOC 350-70 1-2(b) scope: The intent of the regulation is to operationalize the Army Learning Model (ALM). ALM seeks to meet the Army's need to develop adaptive, critical thinking Army civilians capable of meeting the challenges of operational adaptability in an era of persistent conflict. Without the Element B online instruments the government would be unable to help civilians develop the necessary adaptive and critical thinking skills to support the ALM.

6. Efforts to Obtain Competition:

Multiple notice of intent to sole source publications to SAM.gov invite competitors to meet the requirements defined. All previous awarded actions and this action have not received responses to the notice of intent to sole source publications on SAM.gov. For this procurement the MICC specifically stated in the title of the publication to SAM.gov, "intent to sole source with alternative consideration - Element B."

☒ The Contracting Officer published notice required by FAR 5.201

☐ FAR 5.202(a) (), this action will not be synopsisized.

7. Actions to Increase Competition:

Notice of intent to sole source postings on SAM.gov increases competition by inviting competitors to challenge the intent to sole source by meeting the requirements defined. Over past and present publications there have been no responses leading to no competition at this time.

8. Market Research:

Researching past contract actions for the Element B requirement showed the contracts were sole sourced to The Schutz Company Inc. with supporting documentation supporting Element B is copyrighted material to The Schutz Company Inc.

9. Interested Sources:

No sources have shown any interest to any of the previous or present publications to FBO or SAM.gov.

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10. Procurement History:

(1) Contract numbers and dates of the last three contracts for the Element B requirement.

W91QF418A0001 [REDACTED] Limit - Dated 30 November 2017

W91QF418A0001 0001 For [REDACTED] - Dated 6 December 2017

W91QF419F0017 For [REDACTED] - Dated 28 November 2018

(2) The last three contracts noted above were all sole sourced to The Schutz Company Inc.

(3) The justification for the previous BPA is consistent with the current contract. The Schutz Company Inc has copyright licensing over Element B materials.



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11. Technical Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Typed Name: [REDACTED] Date: [REDACTED]

Title: AMSC Chief Operations

Signature: [REDACTED]

12. Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Typed Name: [REDACTED] Date: [REDACTED]

Title: AMSC Deputy Director

Signature: [REDACTED]

[REDACTED]

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13. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable.

This determination will be made using the following:

☒ IGCE

☐ Price Analysis

☐ Cost Analysis

☐ Audit:

☒ Other: Past Contract Pricing, and Public Pricing List

As a part of this basis, certified cost or pricing data is not required because the item and/or services being acquired are considered commercial.

Typed Name: Date: 2025-02-18

Title: Contracting Officer

Signature

14. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

Typed Name: Date: 2025-02-18

Title: Contracting Officer

Signature

15. Exception to Fair Opportunity - Signed One Level above Contracting Officer.

Printed Name:

Date:

Title: Mission Division Chief

Signature: